

COMPREHENSIVE LEGAL DOCUMENTATION

End User License Agreement (EULA) & Global Data Privacy Framework

ECHOES OF ATRAMENTIA: THE DRAWN SPELL

Developer: Inkwell Studios

Document Version: 1.1 (Content Creator Update)

Effective Date: Upon Software Installation / Initial Execution

Regulatory Compliance: GDPR, COPPA, CCPA, and International IP Statutes

Classification: Legally Binding EULA & Privacy Contract

PART I: PRIVACY POLICY & CHILD PROTECTION FRAMEWORK

The development team and corporate entity behind **Echoes of Atramentia: The Drawn Spell**, **Inkwell Studios** (hereinafter referred to as the "Developer", "we", "us", or "our"), considers user data protection a foundational asset. We have structured our data processing infrastructure to strictly align with the European Union's General Data Protection Regulation (GDPR), the United States Children's Online Privacy Protection Act (COPPA), the California Consumer Privacy Act (CCPA), and applicable global data protection standards.

Clause 1: Age Verification Architecture (Age Gate)

Upon launching the Videogame for the first time, the system will execute a mandatory, neutral Age Gate prompting the user to input their full date of birth. To uphold the principles of data minimization, this exact data is never transmitted to or cached on our remote servers. Instead, a local mathematical routine on the client-side device determines whether the player satisfies the minimum digital consent age required by their respective jurisdiction.

Clause 2: Restricted Privacy Mode for Minors

LEGAL GUARDIAN NOTICE: In the event that the client-side evaluation establishes that the user is below the minimum legal age of digital consent, the software will immediately enforce **Restricted Privacy Mode**.

While Restricted Privacy Mode is active, the following automated limitations are strictly imposed:

- **Complete Telemetry Suppression:** The transmission of all telemetry packets, including gameplay statistics, structural metrics related to the signature spell-drawing mechanic, and specific session durations, is completely deactivated. Only non-identifiable, localized technical crash dumps are gathered to ensure cross-platform software stability.
- **Communication Invalidation:** All free-text, unstructured communication mechanisms, including text and voice chat implementations, are entirely disabled to protect minors from unauthorized exposure. Any collaborative or social functionality will be limited strictly to a deterministic system of predefined phrases and safe contextual pings.
- **Verifiable Parental Consent (VPC):** Access to cloud-synchronized persistence, cross-device save states, or the downloading of community-curated cosmetic configurations requires the express, verifiable authorization of a parent or legal guardian. This verification process will be conducted via specialized third-party verification protocols in compliance with COPPA standards.

Clause 3: Data Classes Processed for Consenting Adult Users

For individuals who have legally surpassed the age of digital consent, Inkwell Studios processes only the minimal data footprint required to execute the digital contract and maintain game services:

1. **Technical and Hardware Identifiers:** Truncated IP addresses, system architecture specifications, graphic processing unit (GPU) drivers, and memory allocations, utilized solely for engine optimization and threat prevention.
2. **Gameplay and Interface Telemetry:** Vector coordinates of stroke trajectories drawn by the user, puzzle-solving durations, spell precision indexes, and contextual achievement states. These are processed to calibrate game difficulty, balance spell recognition algorithms, and prevent synchronization errors.

Clause 4: Data Retention and Data Subject Rights

In accordance with the GDPR and CCPA, users (and verified guardians of minor users) retain comprehensive rights of Access, Rectification, Erasure ("Right to be Forgotten"), and Portability. Erasure requests submitted via our dedicated technical support channels will trigger a permanent purge of all remote server entries linked to the specific account identifier within 72 business hours.

PART II: END USER LICENSE AGREEMENT (EULA)

IMPORTANT—READ CAREFULLY: THIS END USER LICENSE AGREEMENT IS A LEGALLY BINDING CONTRACT BETWEEN YOU (THE "USER", "PLAYER", OR "LICENSEE") AND INKWELL STUDIOS. BY DOWNLOADING, INSTALLING, COPYING, OR OTHERWISE UTILIZING *ECHOES OF ATRAMENTIA: THE DRAWN SPELL* (THE "SOFTWARE"), YOU EXPLICITLY AGREE TO BE BOUND BY THE ENTIRETY OF THE CLAUSES CONTAINED HEREIN.

Clause 1: Grant of a Limited, Conditional License

Subject to your continuous compliance with the terms and conditions of this Agreement, Inkwell Studios hereby grants you a personal, limited, non-exclusive, non-transferable, non-sublicensable, revocable license to install and execute one (1) copy of the Software on a personal device solely for your private entertainment purposes.

Except as expressly permitted under Clause 12 (Content Creation and Streaming Rights), any commercial exploitation, public broadcasting, or profitable redistribution of the Software or its audiovisual output is strictly prohibited. The Software is licensed to you, not sold. This agreement does not convey any title, ownership interest, or proprietary rights over the Software, its compiled assets, or its associated online architecture.

Clause 2: Explicit License Restrictions

Any use of the Software in violation of these License Restrictions is strictly prohibited, constitutes a material breach of this Agreement, and shall automatically terminate your license. Except as expressly permitted under this EULA, you agree that you will not, under any circumstances, cause or permit any third party to:

- Exploit the Software, its structural mechanics, or any of its individual components for any commercial, lucrative, or promotional purpose without the express prior written consent of Inkwell Studios (save for the narrow exceptions granted to Content Creators in Clause 12).
- Reverse engineer, decompile, disassemble, modify, or attempt to extract or derive the underlying source code, asset formats, or network protocols of the Software, except to the extent permitted by applicable local laws.
- Create, host, maintain, or facilitate unauthorized matchmaking clones, custom network servers, or emulators that intercept or replicate the communication protocols of the Software.
- Utilize data-mining, scrapers, robots, or similar data-gathering tools to extract textures, audio files, narrative databases, or mathematical algorithms from the Software's installation directory.

Clause 3: Intellectual Property & Ownership Rights

You acknowledge and agree that all right, title, and interest in and to the Software—including but not limited to the source code, object code, shader libraries, user interface layouts, the proprietary spell-drawing vector recognition engine, narrative dialogue, lore books, character concepts, environmental background art, musical arrangements, and sound design—are owned exclusively by Inkwell Studios and are protected by national copyright laws, international treaties, and trademark statutes. All rights not explicitly granted to you under this license are reserved entirely by Inkwell Studios.

Clause 4: User-Generated Content (UGC) & Custom Drawing Rights

The Software features interactive mechanics allowing players to generate unique vector inputs, custom spell sigils, or custom drawings (collectively referred to as "User-Generated Content" or "UGC").

To the extent that your UGC contains original artistic input, you retain ownership of such content. However, by creating, uploading, or displaying UGC within the Software or its connected social channels, you hereby grant

Inkwell Studios a perpetual, irrevocable, worldwide, royalty-free, fully paid-up, sublicensable, and transferable license to host, cache, store, reproduce, modify, display, distribute, and utilize your UGC solely for the purposes of operating, optimizing, promoting, and improving the Software and its algorithmic stroke-recognition systems.

Clause 5: Permitted Cosmetic Modifications ("Mods")

Notwithstanding the restrictions outlined in Clause 2, Inkwell Studios firmly supports community personalization and grants a narrow exception for the implementation of consumer-end modifications under the following conditions:

You are granted permission to develop, install, and distribute modifications ("Mods") whose functional scope is strictly and exclusively cosmetic (e.g., alternative character apparel/skins, hats, custom UI color palettes, or visual wand/staff overlays).

5.1 Structural and Technical Boundaries for Cosmetic Modifications:

- **Exclusive Reliance on Native Assets:** Permitted cosmetic mods must only manipulate, swap, or re-texture asset files pre-existing within the compiled base code of the Software. The injection of entirely new external 3D meshes, custom animations, copyrighted third-party audio, or foreign compiled dynamic libraries (.dll, .so) is strictly prohibited.
- **Complete Mechanical Neutrality:** Under no circumstances may a mod alter collision volumes (hitboxes), character movement velocities, spell execution frames, or the internal precision thresholds of the spell-drawing mechanics. Mods must have absolute zero impact on the gameplay balance, difficulty curves, or performance indexes of the game.
- **Non-Commercial and Free-to-Access Distribution:** All user-created cosmetic mods must be made available to the public completely free of charge. You may not sell, rent, lease, or place mods behind any direct or indirect commercial paywall, subscription service, or digital transaction platform.

Clause 6: Automated Monitoring, Anti-Cheat, and Fraud Prevention

To preserve a fair environment and verify compliance with Clause 5, the Software may employ automated background detection mechanisms. You hereby grant your express consent for the Software to monitor your device's volatile memory (RAM) and active system processes purely while the Software is executing. This monitoring is restricted to the detection of known malicious software, unauthorized memory injection tools, cheats, hacks, or mods that violate the cosmetic constraints of this agreement. No private personal documents or unrelated system configurations are scanned or extracted during this process.

Clause 7: Patching, Balancing, and Software Evolution

You acknowledge that the Software is an evolving product. Inkwell Studios reserves the absolute right to deploy mandatory patches, updates, hotfixes, and structural alterations. These updates may modify spell recognition parameters, adjust balance values, reconfigure levels, or temporarily disable certain functionalities for maintenance. Inkwell Studios shall incur no liability to you for any such modifications, and your continued use of the Software following an update constitutes acceptance of the modified version.

Clause 8: Warranty Disclaimer & Limitation of Liability

THE SOFTWARE AND ALL ASSOCIATED SERVICES ARE PROVIDED TO YOU ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT. INKWELL STUDIOS DOES NOT WARRANT THAT THE SOFTWARE WILL OPERATE UNINTERRUPTED, ERROR-FREE, OR SECURELY FROM DATA LOSS.

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL INKWELL STUDIOS, ITS AFFILIATES, OR LICENSORS BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, LOSS OF DATA, DEVICE DAMAGE, OR SYSTEM MALFUNCTIONS ARISING OUT OF OR IN CONNECTION WITH YOUR USE OR INABILITY TO USE THE SOFTWARE, EVEN IF INKWELL STUDIOS HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

Clause 9: Indemnification

You agree to indemnify, defend, and hold harmless Inkwell Studios, its directors, employees, and agents from and against any and all claims, liabilities, damages, losses, and expenses (including legal fees) arising out of or in any way connected with your violation of this Agreement, misuse of the Software, or the creation and distribution of any modification that infringes upon third-party intellectual property or violates the technical boundaries specified in Clause 5.1.

Clause 10: Termination Framework

This Agreement remains effective until terminated. You may terminate this agreement at any time by permanently deleting and destroying all copies of the Software in your possession. Inkwell Studios reserves the right to terminate this agreement immediately and without notice if you fail to comply with any term or condition herein. Upon termination for breach, all rights granted to you under this license shall instantly cease, and you must immediately cease all execution of the Software.

Clause 11: Governing Law and Dispute Resolution

This Agreement, and any dispute, controversy, or claim arising out of or relating to it, shall be governed by and construed in accordance with the laws of Spain and the overarching regulations of the European Union, without regard to conflict of law principles. Any legal action or proceeding arising directly under this EULA shall be brought exclusively before the competent courts located in Madrid, Spain, and you hereby consent to the personal jurisdiction of such courts.

Clause 12: Content Creation, Streaming, and Influencer Framework

Inkwell Studios explicitly encourages the broadcast, review, analysis, and recording of the Software by digital content creators, including but not limited to livestreamers on Twitch, video producers on YouTube, and social media influencers (collectively, "Content Creators"). Subject to the restrictions below, you are granted a revocable, non-exclusive license to use the visual and audio output of the Software for digital media creation.

12.1 Authorized Monetization Paths

Content Creators are legally permitted to monetize videos, streams, or written material featuring the Software under the following approved methods:

- Participation in platform-integrated partner advertising programs (e.g., YouTube Partner Program AdSense, Twitch Ad Breaks).
- Receipt of standard localized community support systems, including viewer subscriptions, bits, virtual tokens, or direct voluntary donations.
- Corporate sponsorship arrangements, provided that the sponsored content does not state or imply that Inkwell Studios endorses, sponsors, or is affiliated with the sponsor's products without prior written contract.

12.2 Explicit Prerequisites and Restrictions for Content Creation

To retain authorization under this Clause, Content Creators must strictly execute their activities in accordance with the following compliance parameters:

- **Prohibition of Hard Paywalls:** Audiovisual content showcasing substantial gameplay, narrative reveals, or core spell-drawing mechanics must be fundamentally accessible to the public. Creators may offer limited tier-based early access (e.g., via Patreon, YouTube Memberships) for a duration not exceeding fourteen (14) days, after which the material must be made publicly reviewable without direct financial barriers.
- **Mandatory Attribution and Credit:** All long-form produced video material (including Let's Plays, structural guides, and lore deep-dives) must contain a clear, legible textual attribution within the metadata description field or end credits, stating: *"Gameplay footage from Echoes of Atramentia: The Drawn Spell. © Inkwell Studios. All Rights Reserved."*
- **Standalone Asset Ripping Ban:** Creators are strictly forbidden from separating the Software's compiled assets to publish them independently. Uploading or distributing the standalone soundtrack, specific voice acting audio lines, environment background illustrations, or structural UI vector graphics outside of active, contextual gameplay commentary is an actionable copyright infringement.
- **Ethical and Safe Content Context:** The license granted under this Clause is immediately voided if the broadcasted material leverages the Software to promote, display, or facilitate game hacks, malicious software injection, illicit mod distributions, or contains hate speech, discriminatory rhetoric, or defamatory commentary targeting individual persons or protected groups.